

Dharni Dhar Pandey v. State of U.P.

Allahabad High Court · Division Bench · 19 August 2019 · WRIT - C No. - 27276 of 2019 · **Writ disposed of; Executive Engineer directed to consider the new-connection application and pass a reasoned speaking order either way within four weeks.**

HEADNOTE

Clauses 4.1, 4.3 and 4.4 of the U.P. Electricity Supply Code, 2005 oblige the distribution licensee to consider a new-connection application and, if there is no legal impediment, to grant the connection speedily within a month. Unexplained inaction is unjustified. The writ was disposed of with a direction to the Executive Engineer, PVVNL, Ghaziabad to consider the petitioner's application and pass a reasoned speaking order either way within four weeks.

FACTUAL SUMMARY

Dharni Dhar Pandey applied to Paschimanchal Vidyut Vitran Nigam Ltd., Ghaziabad, for a 2 kW new electricity connection on 19 June 2019 and followed it with a representation dated 20 June 2019. No decision was taken. He sought a mandamus from the Allahabad High Court directing the Executive Engineer, PVVNL, to decide the representation and permit the connection on payment of usual charges, invoking section 43 of the Electricity Act, 2003 and clause 4.9 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.1

new-connection-application

HOLDING

Clauses 4.1, 4.3 and 4.4 of the U.P. Electricity Supply Code, 2005 cast an obligation on the distribution licensee to consider an application for a new electricity connection and, if there is otherwise no legal impediment, to grant the connection speedily within a month. Unexplained inaction is unjustified. The Executive Engineer was directed to consider the petitioner's application and pass a reasoned speaking order either way within four weeks. ¶ 1

PRINCIPLE TAGS

arrears-run-with-the-premises

Clauses 4.1, 4.3 and 4.4 of the U.P. Electricity Supply Code, 2005 oblige the distribution licensee to consider a new-connection application and, if there is no legal impediment, to grant the connection speedily within a month. Unexplained inaction is unjustified.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED TO A 2 KW NEW CONNECTION ON THE MERITS

The Court directed only a speaking decision either way and did not grant or refuse the connection. ¶ 1